

24SMCV00010 24SMCV00010

County: los-angeles

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Case Number: 24SMCV00010 Hearing Date: August 4, 2026 Dept: M

CASE NAME: Glowa, v. MDR L&M Apartments LLC, et al.

CASE NO.: 24SMCV00010

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 8/4/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

ANALYSIS

Plaintiff Anna Glowa moves for an order compelling responses from Defendant Common Management Co. as to her Form Interrogatories, Set One, and Requests for Production of Documents, Set One. Plaintiff seeks monetary sanctions of \$4,125.00 per motion against Defendant and its counsel of record.

Plaintiff

shows proper proof of electronic service of the instant motions via defense counsel's email on record. Defendant has also waived any service issues by substantively responding to the motions. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697-698.)

Furthermore, Defendant may only file one opposition, and the second opposition filed on July 23, 2026, is stricken.

Here, Defendant does not dispute that Plaintiff served it with the subject discovery on December 10, 2025. Defendant's counsel explains that it has been unable to secure verifications because Defendant is in bankruptcy and counsel has been unable to reach any current corporate representative, and no available officer, employee, or agent presently exists to verify discovery responses on the company's behalf. (Berg Decl. ¶¶ 2-3.) Defendant does not oppose an order requiring verified responses once an authorized representative exists. Defendant cites no authority for the proposition that, since its insurance-appointed counsel lacks information on current employees who might be able to verify discovery, Defendant itself is now immune from its discovery obligations and sanctions. Here, Plaintiff has served discovery, and Defendant has not responded as required.

Defendant

argues that any sanctions against it or its counsel would violate the bankruptcy stay and the stipulation to partially lift the stay. The stipulation regarding the bankruptcy stay necessarily permits the court to impose sanctions against Defendant. The stipulation gave limited relief from the stay and is premised on certain facts, including the Trustee's agreement to allow Plaintiff to pursue causes of action and seek satisfaction of any judgment, award, settlement, claim, distribution, or any other

resolution or right to payment obtained by Plaintiff in connection with the Cause of Action solely from any insurance proceeds available under any applicable insurance policies. The first paragraph of the stay expressly modifies the stay solely to the extent necessary to permit Plaintiff access to any Insurance Proceeds in relation to the Cause of Action. Plaintiff otherwise may not recover from the bankruptcy estate. According to paragraph 5, the stipulation also does not create or permit any direct right of action against Common's insurers. Thus, the stay was lifted for prosecution of this action directly against Common. This would necessary include all processes available to the court under such proceedings, including under the Discovery Act. At worst, the stipulation would require that any sanctions against Common would only be payable from insurance proceeds (if coverage exists) and not the bankruptcy estate (since Plaintiff waived such a payment). And, of course, the Court retains the authority to sanction defense counsel regardless of the partially-lifted bankruptcy stay.

Under the circumstances, the imposition of sanctions against defense counsel would be unjust. Counsel demonstrates that they should not be sanctioned since the reasons for the lack of verifications were ultimately outside of their control. However, Defendant may still be sanctioned for its unexcused failure to abide by its discovery obligations. That said, the Court also finds the sanctions request to be unreasonable under the circumstances.

Accordingly, the motion is GRANTED. The Court will confer with counsel on when verifications might be securable, if at all. Sanctions are imposed only against Defendant in the total amount of \$2,120.00. Sanctions are payable to Plaintiff's counsel of record within 30 days.